

Sandeep Saxena v. State of U.P.

Allahabad High Court · Division Bench · 11 July 2018 · Writ-C No. 23318 of 2018 · Writ-C No. 23318 of 2018 · **Writ disposed; consumer directed to represent to the Executive Engineer under Supply Code 6.5.**

HEADNOTE

Writ for corrected bills on sanctioned load, instalments, restoration of connection no. 2707355000 and restraint against recovery of Rs. 1,19,740 disposed of without examining merits. On the licensee's submission that clause 6.5 of the Electricity Supply Code, 2005 was available, the consumer was directed to represent to the Executive Engineer, EUDD-III, Patel Nagar, Ghaziabad within three weeks, to be decided in accordance with law preferably within three months.

FACTUAL SUMMARY

Sandeep Saxena, a consumer of connection no. 2707355000 at Ghaziabad, filed a writ seeking a corrected bill for 1 January 2011 to 12 January 2017 on the sanctioned load and meter reading up to disconnection, alleging that load had been increased behind his back. He also sought instalment facility, restoration of supply, and a restraint against coercive recovery of alleged dues of Rs. 1,19,740. Counsel for the Electricity Department submitted that the petitioner had a remedy under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-representation

HOLDING

On the licensee's pointing to clause 6.5 of the Electricity Supply Code, 2005, the High Court declined to examine the consumer's claim for bill correction, restoration and restraint against recovery, and disposed of the writ by directing a representation to the Executive Engineer, EUDD-III, Patel Nagar, Ghaziabad within three weeks, to be decided in accordance with law preferably within three months, without any opinion on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILLS, ALLEGED UNAUTHORISED LOAD INCREASE, INSTALMENTS, RESTORATION AND COERCIVE RECOVERY OF RS. 1,19,740

Court expressly recorded that it had not expressed any opinion on the merits. ¶ 1